



File No.: EXP202308451

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Presidency of the Spanish Agency for Data Protection dated March 19, 2025, and based on the following

FACTS

FIRST: On March 19, 2025, a resolution was issued by the Presidency of the Spanish Agency for Data Protection in file EXP202308451, by virtue of which a warning was directed to A.A.A. for violations of Articles 6.1 and 13 of the GDPR, classified, respectively, in Articles 83.5 a) and 83.5 b).

Furthermore, the resolution ordered the appellant, as a corrective measure, that, pursuant to Article 58.2 d) of the GDPR, within 1 month from the date the resolution became final and enforceable: "prove that the cameras have been reoriented towards your property, avoiding the capture of common areas or elements. If the reorientation is not sufficient to prevent the capture of common areas or elements, you must prove the removal of the cameras, or, failing that, have authorization from the homeowners' association" and "prove that you have included, at a minimum, the following information on the informative signs that alert about the monitored area: the identification of the existence of a processing operation, the identity of the data controller, and the possibility of exercising the rights provided for in data protection regulations."

This resolution, which was notified to the appellant on April 2, 2025, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), and subsidiarily in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, the following was recorded: "FIRST: There is a video surveillance system consisting of two cameras located on the private terrace of a dwelling. One of the cameras is installed on the wall of the exterior facade, while the other is located on the railing of the terrace, on its outer side.

SECOND: The cameras that make up the video surveillance system focus on a community parking area that has both outdoor parking spaces and access to storage rooms or closed garages, owned by third parties.

THIRD: The video surveillance system lacks the necessary authorization from the homeowners' association for the capture of common areas or elements.

FOURTH: In the monitored area, there are two incomplete informative signs. One is located on the aforementioned terrace, while the other is situated in the community parking area. The signs therefore lack the necessary information regarding the identity of the data controller, the possibility of exercising rights in data protection matters, or the place to obtain more information.

FIFTH: The data controller of the video surveillance system is A.A.A. with NIF ***NIF.1."

THIRD: The appellant submitted a document on April 11, 2025, to this Spanish Agency for Data Protection, which does not qualify as a reconsideration appeal, in which they literally express the following:

"(...) the police, ***COMPANY.1 and the lawyer do not understand your request.

If they are requesting information about 'supposed video surveillance cameras' in (...), how do we respond to them (summer 2024 EXP(...)) there is NOTHING: neither recording nor cameras.

Starting in September 2025, we will contract video surveillance with ***COMPANY.1. If they want more information, we will consult it beforehand (police, lawyer) and send it to them.

A year ago, they asked us about the cameras that monitor the lot. We have responded three times. We are waiting for a response from a second law firm. And it is in the hands of journalists from Antena 3. The police, ***COMPANY.1 and lawyers do NOT understand why every three months we receive a burofax from you (...).

We wrote this to you on March 24, 2025 (...) regarding file EXP202308451.

As we mentioned in the email from February, we have consulted your request with ***COMPANY.1,

the police, the criminal law firm that is handling the complaints against all the neighbors of the communities located at ***ADDRESS.1. And that precisely on April 17, they will be rectified in the courts of Barcelona, after two years of processing.

95% of the neighbors of these communities managed by ***ADMINISTRATION.1 and advised by ***FIRM.1 will receive a complaint for crimes committed on the lot of my property.

As there are more crimes, a second criminal firm is finishing two complaints, one for each community (...). (sic).

Along with their document, they do not present any document that proves the sending of the text of March 24, 2025.

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FOURTH: In the file EXP(...) to which the appellant refers, there is a document from them in which, among other aspects, it is stated:

“(...) I am the owner of the apartment (***ADDRESS.2) where the surveillance cameras (***COMPANY.1) are located and the plot (***ADDRESS.3): A.A.A. (...)”

LEGAL GROUNDS

I

Competence

As a preliminary matter, it should be noted that the new document submitted by the appellant has not been classified as a motion for reconsideration. However, subsection 2 of Article 115 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), establishes that the error or absence of classification of the appeal by the appellant shall not be an obstacle to its processing, provided that its true nature is deduced, so the submitted document will be processed as a motion for reconsideration.

The Presidency of the Spanish Agency for Data Protection is competent to resolve the present appeal, in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, the following should be noted:

Firstly, the appellant states that there are neither recordings nor cameras and that the hiring of these will take place starting in September 2025. However, the assertions made have not been substantiated and contradict the photographs in the file that show two cameras on the private terrace of the appellant's residence. One on the wall of the exterior facade, and the other on the railing of the terrace, on its outer side, in addition to surveillance signs from the company mentioned by the appellant.

Furthermore, it is noted that this was reported in another file. However, in the document signed by the appellant in another file, the existence of surveillance cameras contracted with the company ***COMPANY.1 is confirmed.

On the other hand, in their statements, the appellant refers to an alleged document dated March 24, 2025, which they would have sent to the AEPD and which this agency would not have taken into account when issuing a resolution in the present procedure, since the resolution was not notified until April 2, 2025.

In this regard, it is noted that, in accordance with Article 16.4 of the LPACAP, documents that interested parties address to Public Administrations may only be submitted through one of the following means:

“a) In the electronic registry of the Administration or Agency to which they are addressed, as well as in the other electronic registries of any of the subjects referred to in Article 2.1.

- b) In the offices of Correos, in the manner established by regulation.
- c) In the diplomatic representations or consular offices of Spain abroad.
- d) In the offices of assistance in registration matters.
- e) In any other means established by current regulations.”

Therefore, according to the aforementioned Article 16 of the LPACAP, email is not a valid means of communication for sending documents to Public Administrations.

In this sense, there is no record in this Agency, nor has its submission been substantiated by the appellant, of any document submitted by them through any of the valid means determined by Article 16.4 of the LPACAP in the file of the contested resolution, with the exception of the document by which the motion for reconsideration is understood to have been filed, which gives rise to this resolution.

Notwithstanding the above, it should be noted that the content of the document dated March 24, 2025, by itself, would not have changed the outcome of the resolution and that it is not the responsibility of this Agency to rule or resolve issues that exceed the scope of personal data protection and that must be addressed, if applicable, before the competent administrative or judicial bodies.

For all the above reasons, it is understood that the statements made by the appellant do not undermine the meaning of the resolution.

III

Conclusion

Consequently, in the present motion for reconsideration, the appellant has not provided factual elements or legal arguments that allow for a reconsideration of the validity of the contested resolution.

IV

Late Resolution

Due to reasons related to the functioning of the administrative body, therefore not attributable to the appellant, the mandatory pronouncement of this Agency regarding the present appeal has not been issued to date.

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In accordance with the provisions of Article 24 of the LPACAP, the meaning of administrative silence in the procedures for challenging acts and provisions is dismissive.

However, despite the time that has passed, the Administration is obliged to issue an express resolution and to notify it in all procedures, regardless of their initiation method, as provided in Article 21.1 of the aforementioned LPACAP.

In cases of dismissal due to administrative silence, the express resolution issued after the deadline will be adopted by the Administration without any binding effect from the meaning of the silence, as provided in Article 24.3 of the same law.

Therefore, it is appropriate to issue the resolution that concludes the procedure of the appeal for reconsideration filed.

Having considered the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by A.A.A. against the resolution of this Spanish Agency for Data Protection issued on March 19, 2025, in file EXP202308451.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDPGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDPGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional

provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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